

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #13	CCRB Case #: 201908138	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/14/2019 2:20 AM	Location of Incident: Belmont Avenue and Warwick Street	Precinct: 75	18 Mo. SOL 3/14/2021	EO SOL 10/29/2021	
Date/Time CV Reported Mon, 09/16/2019 9:12 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/16/2019 9:12 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Garth Merandy	5557	949326	SRG
2. DTS Juan Rodriguez	6709	939343	SRG
3. SSA Rafael Tosado	04348	937928	SRG

Officer(s)	Allegation	Investigator Recommendation
A.SSA Rafael Tosado	Abuse: Sergeant Rafael Tosado questioned § 87(2)(b)	
B.SSA Rafael Tosado	Abuse: Sergeant Rafael Tosado frisked § 87(2)(b)	
C.DTS Juan Rodriguez	Abuse: Detective Juan Rodriguez frisked § 87(2)(b)	
D.DTS Garth Merandy	Abuse: Detective Garth Merandy searched the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On September 16, 2019, § 87(2)(b) called the CCRB and filed this complaint on behalf of himself, his girlfriend, § 87(2)(b) his uncle, § 87(2)(b) and an unidentified female friend of § 87(2)(b)s.

On September 14, 2019, at about 2:20 a.m., § 87(2)(b) was driving his vehicle, which was occupied by § 87(2)(b) and § 87(2)(b)s friend whose name § 87(2)(b) did not know, in the vicinity of Belmont Avenue and Warwick Street in Brooklyn. § 87(2)(b)s vehicle was stopped by Sgt. Rafael Tosado, Det. Garth Merandy, and Det. Juan Rodriguez of the Strategic Response Group. Sgt. Tosado questioned § 87(2)(b) (**Allegation A: Abuse of Authority, Exonerated**). Sgt. Tosado frisked § 87(2)(b) (**Allegation B: Abuse of Authority, Exonerated**). Det. Rodriguez frisked § 87(2)(b) (**Allegation C: Abuse of Authority, Exonerated**). Det. Merandy searched the vehicle (**Allegation D: Abuse of Authority, Exonerated**). § 87(2)(b) was issued a summons § 87(2)(b)

Body Worn Camera (BWC) video of the incident was received. The video is attached to IA#42-45 (**BR01-03**) and is summarized in IA #45 (**BR04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Rafael Tosado questioned § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Rafael Tosado frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Juan Rodriguez frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Detective Garth Merandy searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that the vehicle he was driving, which was also occupied by § 87(2)(b), § 87(2)(b), and § 87(2)(b)s unidentified friend was stopped (**BR05**). Sgt. Tosado, identified via investigation, approached the driver's side and ordered § 87(2)(b) to provide his driving credentials, which § 87(2)(b) took out from his wallet and provided. Sgt. Tosado asked to see § 87(2)(b)s gun permit, which was visible in § 87(2)(b)s wallet after he took out his license. § 87(2)(b) provided his gun permit. Sgt. Tosado asked § 87(2)(b) whether he had any weapons on him. § 87(2)(b) said no. Sgt. Tosado ordered § 87(2)(b) to exit the vehicle. § 87(2)(b) complied. Sgt. Tosado frisked § 87(2)(b) and ordered him to stand at the rear of his vehicle. The other occupants of the vehicle were also ordered to exit and stand at the rear of the vehicle. § 87(2)(b) asked Sgt. Tosado why he was stopped. While speaking with Sgt. Tosado, § 87(2)(b) turned his head around multiple times and saw an officer, identified by the investigation as Det. Merandy, enter his vehicle. Marijuana which belonged to § 87(2)(b) and her friend, was found in the vehicle. § 87(2)(b) told Det. Merandy that he did not give him permission to search the vehicle, to which Det. Merandy responded that he did not need § 87(2)(b)s permission. A few minutes after having been ordered out of the vehicle, Sgt. Tosado told § 87(2)(b) and the other passengers to re-enter the vehicle. Once the civilians were back inside § 87(2)(b)s vehicle, § 87(2)(b) said an officer had frisked him, though § 87(2)(b) did not witness this happen.

§ 87(2)(b), § 87(2)(b), and § 87(2)(b)s unidentified friend were unavailable to the investigation (see IAs for contact attempts and database searches).

From the start of Sgt. Tosado's BWC video, Sgt. Tosado approaches on the driver's side of § 87(2)(b)s vehicle (**BR01**). Sgt. Tosado orders § 87(2)(b) to produce his license and registration, which he does. At the 02:00 minute mark on the media player timestamp (visible at the bottom of the screen), after asking about § 87(2)(b)s gun permit, Sgt. Tosado asks § 87(2)(b) if he has

the gun in the car. § 87(2)(b) says no. Sgt. Tosado asks, “You have no weapons in the car now?” § 87(2)(b) says, “No weapons.” At 02:45, Sgt. Tosado orders § 87(2)(b) out of the vehicle and frisks him. At 03:20, Det. Rodriguez is visible in the background on the passenger side of the vehicle frisking § 87(2)(b). At 11:30, after § 87(2)(b) has been allowed to re-enter his vehicle, Sgt. Tosado explains to § 87(2)(b) that he searched the vehicle because of the odor of marijuana coming from inside the vehicle.

In Det. Merandy’s BWC video, at the 04:20 minute mark on the media player timestamp (visible at the bottom of screen), Det. Merandy enters through the front driver’s door of the vehicle and searches the compartments on the door, glove compartment, and around the driver’s seat (**BR02**). At 04:40, atop the front passenger seat, Det. Merandy finds a small clear bag and picks it up. Det. Merandy exits the vehicle and tells the people at the rear of the car that he found marijuana. At 05:50, Det. Merandy tells the occupants of the vehicle that the car smells like marijuana. At 06:40, Det. Merandy removes a second small bag from the backseat of the vehicle and announces it to be marijuana as well.

Sgt. Tosado testified that he was the driver in his police vehicle while on routine patrol when he observed that § 87(2)(b)’s vehicle, which was driving ahead of him, had a defective license plate light (**BR06**). While driving behind § 87(2)(b)’s vehicle, Sgt. Tosado smelled the odor of marijuana, though he could not determine if it was coming from § 87(2)(b)’s vehicle. Sgt. Tosado stopped § 87(2)(b)’s vehicle due to the defective license plate light. Upon approaching the stopped vehicle, Sgt. Tosado immediately smelled a strong odor of marijuana coming from the vehicle. Sgt. Tosado said he is familiar with the distinct odor of marijuana due to his 15 years of experience as a police officer, during which, he has made hundreds of marijuana related arrests and summonses. Sgt. Tosado asked § 87(2)(b) whether he had any weapons on him for Sgt. Tosado’s safety and then ordered § 87(2)(b) out of the vehicle to continue his investigation into the marijuana odor. Sgt. Tosado frisked § 87(2)(b) due to the odor of marijuana in the vehicle which gave him probable cause to search § 87(2)(b) for weapons and contraband. Det. Merandy searched the vehicle due to the odor of marijuana. § 87(2)(b) was summonsed § 87(2)(b)

The common-law right of inquiry is a level of contact between officers and civilians which is activated by founded suspicion that criminality is afoot and permits a greater intrusion than a mere request for information. Officers may ask pointed questions which would lead the person to reasonably believe that he or she is suspected of wrongdoing. New York v. Hollman, 79 N.Y. 2d 181 (1992) (**BR07**).

Where an officer possesses probable cause that a defendant is guilty of a crime, the officer may ask the defendant whether they possess any weapons to ensure his safety. People v. Burgos, 255 A.D.2d 199 (1998) (**BR12**).

An officer may search the occupants of a vehicle where he possesses probable cause that they are guilty of a crime rather than merely a traffic infraction. Where an officer detects the odor of marijuana emanating from a stopped vehicle, he shall possess probable cause to search the vehicle and its occupants. People v. Chestnut, 43 A.D.2d 260 (1974) (**BR08**).

§ 87(2)(b) denied that there was an odor of marijuana inside the vehicle. § 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B-D** be closed as **Exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) have been a party (**BR09**).
- Det. Merandy has been a member of the service for nine years and has been a subject in three CCRB complaints, involving three allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Tosado has been a member of the service for 14 years and has been a subject in five CCRB complaints involving 16 allegations, none of which substantiated. § 87(2)(g)
- Det. Rodriguez has been a member of the service for 15 years and has been a subject in 16 CCRB complaints involving 46 allegations, six of which were substantiated. § 87(2)(g)
 - In CCRB 201408513, the Board substantiated an entry allegation against Det. Rodriguez, and recommended Formalized Training which the NYPD imposed.
 - In CCRB 201409498, the Board substantiated pepper spray, physical force, and gun drawn allegations against Det. Rodriguez. The Board recommended Command Discipline B and the NYPD imposed Command Level Instructions.
 - In CCRB 201506415, the Board substantiated vehicle search and vehicle stop allegations against Det. Rodriguez. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- According to the NYC Office of the Comptroller, no Notice of Claim has been filed regarding this incident (**BR10**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator: Rolando Vasquez
Signature

SI Rolando Vasquez
Print Title & Name

11/27/2020
Date

Squad Leader: IM Laura Kastner
Signature

IM Laura Kastner
Print Title & Name

11/27/2020
Date